

Indian Polity & Constitutional Framework

Chapter 1: Historical Evolution

Historical Background of the Indian Constitution

The Indian Constitution has deep roots in the British colonial administrative architecture. The Regulating Act of 1773 was the first step taken by the British Government to control and regulate the affairs of the East India Company in India.

Key landmark legislations include the Charter Act of 1833 which centralized legislation under the Governor-General of India (Lord William Bentinck), and the Government of India Act 1858 which transferred power directly to the British Crown following the 1857 Sepoy Mutiny.

The Government of India Act 1935 laid the structural foundation of federalism, introducing provincial autonomy, bicameralism in six provinces, three legislative lists (Federal, Provincial, Concurrent), and the Federal Court.

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Chapter 2: Preamble

Preamble & Sovereign Philosophy

The Preamble to the Indian Constitution is based on the Objective Resolution introduced by Pandit Jawaharlal Nehru on December 13, 1946, and adopted unanimously on January 22, 1947.

It declares India to be a SOVEREIGN, SOCIALIST, SECULAR, DEMOCRATIC REPUBLIC and secures to all citizens JUSTICE (social, economic, and political), LIBERTY of thought, expression, belief, faith and worship, EQUALITY of status and opportunity, and FRATERNITY.

In *Kesavananda Bharati v. State of Kerala* (1973), the Supreme Court held that the Preamble is an integral part of the Constitution and can be amended under Article 368 without altering the Basic Structure. The 42nd Amendment Act (1976) added the words Socialist, Secular, and Integrity.

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Chapter 3: Fundamental Rights

Fundamental Rights: Articles 14 to 18 (Right to Equality)

Part III of the Constitution (Articles 12 to 35) is termed the Magna Carta of India. Fundamental Rights are justifiable, guaranteed against state actions, and defended directly by the Supreme Court under Article 32.

Article 14 guarantees Equality before the Law (British concept, negative in connotation) and Equal Protection of the Laws (American concept, positive connotation). Reasonable classification is permitted, but class legislation is prohibited.

Article 15 prohibits discrimination on grounds only of religion, race, caste, sex, or place of birth. Article 16 guarantees equality of opportunity in public employment. Article 17 abolishes untouchability, and Article 18 abolishes titles except military and academic distinctions.

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Chapter 3: Fundamental Rights

Right to Freedom: Articles 19 to 22 & Article 21 Expansion

Article 19(1) guarantees six democratic freedoms: speech and expression, assembly peacefully without arms, association/unions/cooperative societies, free movement, residence anywhere, and practice of any profession. These are subject to reasonable restrictions under Article 19(2)-(6).

Article 20 protects against ex-post facto criminal laws, double jeopardy (no prosecution twice for same offense), and self-incrimination.

Article 21 declares: No person shall be deprived of his life or personal liberty except according to procedure established by law. In *Maneka Gandhi v. Union of India* (1978), the Supreme Court interpreted this to mean Due Process of Law, ruling that the procedure must be just, fair, and reasonable. In *K.S. Puttaswamy* (2017), the Right to Privacy was declared an intrinsic part of Article 21.

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Chapter 4: Right to Constitutional Remedies

Constitutional Remedies & Writs (Article 32)

Dr. B.R. Ambedkar famously called Article 32 the very heart and soul of the Constitution. It confers the right to move the Supreme Court by appropriate proceedings for the enforcement of Fundamental Rights.

The five prerogative writs are: 1. Habeas Corpus (To have the body of - against illegal detention); 2. Mandamus (We command - compelling a public official to perform statutory duties); 3. Prohibition (Issued by higher court to lower court preventing jurisdictional excess); 4. Certiorari (To be certified - quashing orders of inferior courts/tribunals); 5. Quo-Warranto (By what authority - challenging illegal usurpation of public office).

Article 226 gives High Courts wider writ jurisdiction, extending to fundamental rights as well as ordinary legal rights.

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Chapter 5: DPSP & Welfare State

Directive Principles of State Policy (Articles 36 to 51)

Borrowed from the Irish Constitution, DPSPs are non-justiciable directives guiding governance towards socio-economic democracy and a welfare state.

Classified into: 1. Socialistic Principles (Art 38 welfare promotion, Art 39 equitable distribution of resources, Art 39A equal justice and free legal aid); 2. Gandhian Principles (Art 40 Village Panchayats, Art 43 cottage industries, Art 46 SC/ST educational interests, Art 47 prohibition of intoxicating drinks); 3. Liberal-Intellectual Principles (Art 44 Uniform Civil Code, Art 45 early childhood care, Art 48 agriculture/animal husbandry, Art 48A environment protection, Art 50 separation of judiciary from executive, Art 51 international peace).

In *Minerva Mills* (1980), the Supreme Court held that the Indian Constitution is founded on the bedrock of the balance between Part III (Fundamental Rights) and Part IV (DPSPs).

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Chapter 6: Constitutional Amendment

Basic Structure Doctrine & Amendment Power (Article 368)

Article 368 in Part XX empowers Parliament to amend the Constitution by special majority (2/3 present & voting + majority of total membership) or special majority with ratification by half of the states.

In *Shankari Prasad* (1951) and *Sajjan Singh* (1965), Parliament's amending power was held unlimited. In *Golak Nath* (1967), the Court reversed this, declaring Fundamental Rights could not be abridged.

The landmark 13-judge bench in *Kesavananda Bharati* (1973) formulated the Basic Structure Doctrine: Parliament can amend any part of the Constitution including Fundamental Rights, provided the basic structure (Supremacy of Constitution, Republican & Democratic nature, Secularism, Federalism, Judicial Review) remains intact.